

Mahaveer Singh Chauhan v. U.P. Power Corporation Ltd.

High Court of Judicature at Allahabad · Division Bench · 11 April 2019 · Writ-C No. 12556 of 2019 · Writ-C No. 12556 of 2019 ·
Disposed of: purchaser jointly liable; recovery only by legal process.

HEADNOTE

Clause 4.3(f) of the U.P. Electricity Supply Code, 2005 makes outstanding electricity dues up to the date of sale the joint and several responsibility of seller and purchaser, and the licensee may recover them from either. The High Court held that the licensee nonetheless has no authority to harass the purchaser and may proceed only by legal action. The writ seeking a direction not to realise a former occupant's arrears from the petitioner was disposed of on that construction.

FACTUAL SUMMARY

The petitioner purchased a property of which respondent No. 4 had earlier been a tenant. That former occupant failed to clear electricity arrears. Officials of U.P. Power Corporation Limited thereafter regularly visited the petitioner seeking to recover those arrears from him. By this writ petition he sought a direction to the licensee not to harass him so as to realise dues outstanding against the former tenant.

REUSABLE CONSTRUCTIONS

1. Under clause 4.3(f) of the U.P. Electricity Supply Code, 2005, seller and purchaser are jointly and severally responsible for electricity arrears outstanding up to the date of sale, and the licensee may recover those dues from either of them. ¶ 1
2. The licensee has no authority to harass a purchaser for such arrears; recovery must be by legal action in accordance with law. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.3(f)

arrears on sale of premises — joint and several liability

HOLDING

Outstanding electricity dues up to the date of sale are the joint and several responsibility of seller and purchaser under clause 4.3(f), and the licensee may realise them from either, but it has no authority to harass the purchaser and may take only legal action for recovery. The writ was disposed of with that observation. ¶ 1